Pandit Balkrishna Sharma: A person can preach murder and still go scot-free.

Dr S.P. Mookerjee: There is a proverb that the heat of the sand is sometimes greater than the heat of the Sun. Well, so far as this reference to the preaching of murder is concerned, when the Prime Minister referred to it, it was pointed out by an honourable Member that the judgment had already been reversed by the Supreme Court.

Shri Sidhva: No, no.

Shri Bharati (Madras): No.

Dr S.P. Mookerjee: So far as that decision is concerned it has been reversed by the Supreme Court. I have got with me the judgments of the Supreme Court, which is the final court of the land, in two cases, one of Ramesh Thapar vs. The State of Madras and the other of Brij Bhushan vs. the State of Delhi. When the question of interpretation of Article 19 came up, the Supreme Court held that if the maintenance of public order, or securing the public safety was something which did not affect the security of the State or the overthrowing of the State, then there could be no restriction on freedom of speech. At the same time in another case considered by the Supreme Court recently where the question of the validity of the Preventive Detention Act came up for discussion, the Court held that it was open to a State Legislature or to Parliament to pass laws in respect of matters which affected even public order and thereby detain persons. Now, let us look at the present provisions of the law. Parliament has passed the Preventive Detention Act. Its powers are sufficiently wide in character. Any person, according to that law, read with the provisions in the Constitution, can be detained for an unlimited period provided conditions are fulfilled which would make Government satisfy itself and the public that no one is being unreasonably detained. Now, supposing there are persons who are preaching murder and who are doing something of that character, supposing there is some newspaper which is doing something of that character and the